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|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|----------------------------------------------------|
|  <b>Department of<br/>Children &amp;<br/>Family Services</b><br><i>Building a Stronger Louisiana</i> | <b>Division/Section</b>  | Family Support                                     |
|                                                                                                                                                                                       | <b>Chapter No./Name</b>  | 04 – Economic Stability (ES)                       |
|                                                                                                                                                                                       | <b>Part No./Name</b>     | C – Case Processing                                |
|                                                                                                                                                                                       | <b>Section No./Name</b>  | C-100 FITAP-SNAP Household Determination           |
|                                                                                                                                                                                       | <b>Document No./Name</b> | C-120-FITAP Who Is Included in the Assistance Unit |
|                                                                                                                                                                                       | <b>Effective Date</b>    | October 1, 2017                                    |

## I. STATEMENT OF POLICY

The following persons living in the home must be included in the assistance unit with the exceptions noted below:

### C-121-FITAP PO WHO MUST BE INCLUDED

- The dependent child, including the minor unmarried parent,
- The dependent child's siblings under age 18, including half siblings and legal step siblings,
- The parents of the dependent children who are included,
- The legal stepparent of the dependent child, and
- The minor unmarried parent's child(ren).

Upon determination of who may or must be included, two-parent eligibility must be considered as per [C-1510-FITAP](#).

### EXCEPTIONS:

- The person is an SSI recipient or an SSI eligible with suspended payments. (Not included in Federal Participation Rate)
- The person does not meet the citizenship requirement. (Not included in Federal Participation Rate)
- The parental relationship has been terminated through adoption.
- The person does not meet the enumeration requirements. (Included in Federal Participation Rate)
- The parent is a convicted offender per [C-140-FITAP](#). (Included in Federal Participation Rate)
- The child is provided either federal or state foster care payments. (Included in Federal Participation Rate)
- The person is disqualified due to an intentional program violation. (Included in Federal Participation Rate)
- The person is a fleeing felon or a probation/parole violator. (Refer to document [C-140-FITAP](#).) (Included in Federal Participation Rate)

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- The person is convicted of misrepresentation of residence. (Refer to document: [B-950-FITAP](#).) (Included in Federal Participation Rate)

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- The child receives benefits through the Kinship Care Subsidy Program (KCSP).

### C-122-FITAP PO WHO MAY BE INCLUDED

- A qualified relative other than a parent if the parent does not live in the home and if the qualified relative does not have minor children in the home. If the qualified relative is married, the spouse must also be included. (Included in Federal Participation Rate)
- The caretaker relative, including a minor unmarried parent, may be certified when all of the children in the home receive SSI and the caretaker relative and the children would be eligible if the children were not SSI recipients. The SSI child(ren) is not subject to the FITAP requirement of immunization, school attendance, or parenting skills training. (Included in Federal Participation Rate)
- A woman who is pregnant when there is no eligible child in the home. If the father of the unborn child or the spouse of the pregnant woman is in the home, he must be included. The baby must be expected to be born within 3 months. (Included in Federal Participation Rate)

**NOTE:** Pregnancy and expected date of delivery must be verified by a statement from a medical facility such as a hospital, clinic, health unit or a physician's office.

| <b>If Due Date Is:</b> | <b>Then Certify Effective:</b> |
|------------------------|--------------------------------|
| April                  | January                        |
| May                    | February                       |
| June                   | March                          |
| July                   | April                          |
| August                 | May                            |
| September              | June                           |
| October                | July                           |
| November               | August                         |
| December               | September                      |
| January                | October                        |
| February               | November                       |
| March                  | December                       |

Upon determination of who may or must be included, two-parent eligibility must be considered as per [C-1510-FITAP](#).

- The biological parent whose legal relationship to the child has been terminated through adoption may be included as a qualified relative other than a parent. (Included in Federal Participation Rate)

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|                                                                                                                                                                                       | <b>Effective Date</b>    | October 1, 2017                                    |

The 18 year old child is not required to be included but may be included if he is enrolled in a secondary school or its equivalent.

## **II. PROCEDURES**

### **C-121-FITAP PR WHO MUST BE INCLUDED**

The client cannot choose to exclude a required member from the assistance unit. If the client fails to cooperate in providing verifications of income of a required member, deny assistance for the entire assistance unit.

### **C-122-FITAP PR WHO MAY BE INCLUDED**

There are no procedures associated with this policy.

## **III. FORMS AND INSTRUCTIONS**

There are no forms associated with this policy.

## **IV. REFERENCES**

[LAC 67:III.1203](#)